

25SMCV06693 25SMCV06693

County: los-angeles

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Case Number: 25SMCV06693 Hearing Date: August 6, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

6, 2026

CASE NUMBER

25SMCV06693

MATTER

Request

for Default Judgment

This case arises from a dispute concerning an unlawful detainer. On December 19, 2025, Plaintiff SM 10000 Property LLC ("Plaintiff") brought suit against Defendant Payam Jarrahnejad ("Defendant") and Does 1-10, alleging a single cause of action for unlawful detainer.

On February 26, 2026, Plaintiff served Defendant by posting, as ordered by the Court on February 23, 2026.

Default was entered against Defendant on March 25, 2026. The Doe defendants remain named in the litigation. The Court cannot enter default judgment while the Doe defendants remain named in the litigation. (See California Rules of Court, rule 3.1800(a)(7).)

Plaintiff seeks default judgment against Defendant in the amount of \$318,452.23, which is composed of past due rent in the amount of \$29,146.98; holdover damages in the amount of \$265,438.08; attorneys' fees in the amount of \$10,292.50; costs in the amount of \$1,616.25; and prejudgment interest in the amount of \$11,958.42. (UD-110.)

A. Damages

Plaintiff's Complaint seeks \$29,146.98 in past due rent plus holdover damages at a rate of \$921.66 per day. (See Compl.) Therefore, Plaintiff does not seek damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

In support of the request, Plaintiff advances the Declaration of Nicole Browne, Plaintiff's General Manager for the apartment building at issue, which provides:

2. I am familiar with Defendant PAYAM JARRAHNEJAD ("Defendant."), who is a tenant at 10000 Santa Monica Boulevard, #PH401, Los Angeles, California 90067 ("Subject Property"), pursuant to a July 30, 2025 lease agreement with Plaintiff. The operative Lease agreement for the Subject Property provides the following; (1) the lease period starts on July 31, 2025, and terminates on July 30, 2026; (2) upon expiration of the lease period, Defendant's tenancy converts to a month-to-month tenancy; (3) rent is \$27,650.00 per month; and (4) Under the Lease Agreement, Defendant was to pay 100% of electricity service which is separately supplied and metered to the premises. Attached hereto as Exhibit 1 is a true and correct copy of the lease agreement between Plaintiff and Defendant (hereinafter the "Lease"), including all addenda. Plaintiff is the owner and landlord of the Subject Property. I have personal knowledge of the Lease with Defendant because I bound Plaintiff to said Lease by signing as an agent of Plaintiff.

3. Defendant breached the Lease for failure to make complete rent payment and payments for other amounts owed for the month of October 2025 in the amount of \$29,146.98 in unpaid rent, as stated in the 3-Day Notice. Plaintiff maintains a ledger for all units that summarizes the charges, fees, payments, credits, etc., that are applicable under the lease. A true and correct copy of the ledger for unit #PH401 is attached hereto as Exhibit 2. The ledger is current through March 1, 2026. The ledger indicates Defendant not only failed to make full and complete rental payments for the amounts requested in the 3-day notice, but he has not made a single payment under the lease since September 16, 2025, with an outstanding balance owed in excess of \$170,000.00

4. On October 10, 2025, under my direction, Plaintiff's Security Guard, Mr. Jeisel Ortiz served Plaintiff's 3-Day Notice on Defendant by affixing a copy of said notice to the front door of Unit #PH401 via tape. See Also Declaration of Jiesel Ortiz at ¶ 4. Thereafter, I mailed the 3-day Notice on October 10, 2025. Plaintiff's 3-Day Notice to Pay or Quit demands \$29,146.98 in unpaid rent for the month of October 2025. To date, Defendant did not comply with the 3-Day Notice, but continues to occupy the Subject Property. Attached hereto as Exhibit 3, is the proof of mailing of the 3-day notice to pay or quit to Defendant, which I completed. Attached hereto as Exhibit 4, is a true and correct copy of the 3-Day Notice to Pay or Quit to Defendant, which I drafted and signed as an Agent of Plaintiff.

5. The daily rental value for the Premises is \$921.66 per day, calculated by dividing the total monthly rent (\$27,650.00 divided by 30 days = \$921.66).

(Browne
Decl. ¶¶ 2-5.)

Thus, Plaintiff has adequately substantiated the requested \$29,146.98 past due rent owed as of October 16, 2025, plus holdover damages in the amount of \$265,438.08 for the 288 days from October 16, 2025 to July 30, 2026, when the lease ended.

B. Prejudgment Interest

Plaintiff seeks prejudgment interest on the past due rent and holdover damages at the

rate of 10% as follows:

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August 2025: \$1,512.14

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September 2025: \$0

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October 2025: \$2,364.16

.

November 2025: \$2,095.04

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December 2025: 1,849.79

.

January 2026: \$1,616.43

.

February 2026: \$1,369.78

.

March 2026: \$1,151.07

Plaintiff

has not adequately supported the requested prejudgment interest. Plaintiff explains:

6. For example, on August 1, 2025, Defendant was in breach of his lease for failing to pay rent or other fees as required therein. Plaintiff's Ledger indicates no payments by Defendant was made, but two credits were applied on August 1 and 6, 2025. According to Plaintiff's ledger, Defendant owed a total of \$15,374.08 in rent, utilities, and other fees under the lease, after the total outstanding balance for August 2025 was reduced by the applicable credits. See Exhibit 2 to Nicole Browne's declaration Ten percent of \$15,374.08 is \$1,537.40. \$1,537.40 divided by 365 days per year yields a daily interest of \$4.21. Next, the daily interest rate of \$4.21 is multiplied by 359 days (because the prejudgment interest owed for August of 2025 was calculated on June 25, 2026, plus 30 days for the Court to

review this request for entry of default judgment) which yields \$1,512.14 in prejudgment interest owed for August of 2025.

(Ishu

Decl. ¶ 6.) But the ledger attached as

Exhibit 2 to the Browne declaration does not demonstrate an outstanding balance owed of \$15,374.08 for August 2025.

As such, Plaintiff has not adequately supported the requested prejudgment interest.

C. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides

"[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [....]" Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

(Civ. Code, § 1717, subd. (a).)

The Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).) Paragraph 34 of the Lease

Agreement provides:

34. ATTORNEY'S FEES: In the event of any litigation to enforce this Lease, the prevailing party shall be entitled to recover its reasonable attorneys' fees, not to exceed a total of Fifty thousand dollars (\$50,000.00), and additionally, its costs of litigation.

(Ex. 1 to Browne Decl. at ¶

34.) Therefore,

Plaintiff is entitled to its reasonable attorneys' fees.

Pursuant to Local

Rule 3.214, the default reasonable attorneys' fees for a principal balance over \$100,000 is \$2,890 plus 1% of the excess over \$100,000. Here, the outstanding principal past due rent and holdover fees equals \$294,585.06. 1% of \$194,585.06 equals \$1,945.85. \$1,945.85 plus \$2,890 equals \$4,835.85.

Here, Plaintiff

requests attorneys' fees in the amount of \$10,292.50, more than double the de facto reasonable attorneys' fees. In

support, Plaintiff advances the Declaration of Daniel E. Ishu, counsel for Plaintiff, which provides:

3. To date, Plaintiff has incurred \$10,292.50 in attorneys (sic) fees, and \$1,616.25 in costs. These amounts involve drafting of documents/pleadings, law and motion, attempted settlement negotiations, drafting of settlement documents, filing fees, process server fees, etc. These amounts also include a Work in progress invoice that counsel has not yet send to Plaintiff, which includes \$4,867.50 in attorneys (sic) fees and \$53.73 in costs. Plaintiff's requests for attorneys (sic) fees also include 4 hours of work on this Default Judgment Packet (for a total of \$1,200 - \$300.00 per hour x 4 hours), which involves; (1) review and analysis of all of the exhibits in this motion to identify material facts that are necessary to support Plaintiff's request for default judgment; (2) and drafting of all of the briefing documents, including legal analysis therein. Attached hereto as Exhibit 1, is a true and correct copy of counsel's completed billing invoices

to Plaintiff. Paragraph 34 of the lease agreements contains a prevailing party attorneys (sic) fees provision that is capped at \$50,000.00. See Declaration of Nicole Browne at ¶ 7. See Also Exhibit 1 to Nicole Browne's declaration, paragraph 34.

(Ishu Decl. ¶ 3.) Indeed, attached as Exhibit 1 to the Ishu Declaration are billing records, itemizing and substantiating the requested fees. Therefore, Plaintiff's request for attorneys' fees is granted.

Plaintiff also requests \$1,616.25 in costs composed of filing and service fees. (Ex. 1 to Ishu Decl.) Plaintiff's request for costs is granted as Plaintiff is the prevailing party in this action. (Code Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

The Court cannot enter default judgment while the Doe defendants remain named in the litigation. Plaintiff may make an oral motion on the record dismissing the Doe defendants if it chooses to do so. If not, Plaintiff shall file a Request for Dismissal of the Doe defendants forthwith.

Further, Plaintiff has only shown entitlement to a judgment in the amount of \$306,493.81, which is composed of past due rent in the amount of \$29,146.98; holdover damages in the amount of \$265,438.08; attorneys' fees in the amount of \$10,292.50; and costs in the amount of \$1,616.25. Plaintiff has not adequately substantiated the requested prejudgment interest in the amount of \$11,958.42.

If Plaintiff submits on the Tentative Ruling, the Court will enter the Judgment in conformity with the ruling.

If Plaintiff does not submit on the Tentative Ruling, then the Court will deny Plaintiff's Request for Entry of Default Judgment without prejudice, and set an Order to Show Cause re Entry of Default Judgment on October 22, 2026 at 8:30 A.M. in Department 207. Plaintiff shall file an Amended Request for Entry of Default Judgment on or before October 12, 2026.

Further, on the
Court's own motion, the Court vacates the Case Management Conference scheduled
for September 15, 2026 as moot.

Lastly, if
Plaintiff does not waive notice, the Clerk of the Court shall provide notice of
the Court's ruling.

DATED: August 6, 2026 _/s/_____

Michael
E. Whitaker

Judge
of the Superior Court